NV11 REMOTE WORK AGREEMENT

Employee-Initiated Remote Work

PRIVACY ACT STATEMENT

Authority: This information is sought and maintained under authority of the Telework Enhancement Act of 2010 (5 U.S.C. § 6501 et seq.), 5 C.F.R § 531.605, and 5 U.S.C. § 552a.
Purpose: The information solicited on this form will be used in combination with DD Form 2946 (DoD Telework Agreement) to ensure eligibility in the Telework Program, to acknowledge understanding of terms and conditions, and to facilitate timely processing of employee-initiated remote work request.
Routine Uses: None
Disclosure: Voluntary; however, failure to provide the requested information may delay or result in disapproval of your request.

TERMS OF REMOTE WORK AGREEMENT

The employee acknowledges that s/he has requested to work remotely from the address listed in block 4 of this form and is not requesting remote telework at the behest of the (Command) or Department of the Navy (DON) or for any official/mission-related purpose. The employee recognizes that this remote arrangement is not an employee benefit or entitlement, but is rather an additional workplace flexibility that the DON may approve to enable the employee to work from a location other than the organization's primary worksite for personal reasons.

The employee agrees to comply with all applicable laws, rules, regulations, Department of Defense (DoD), DON, Chief of Naval Operations (NV-11), and Command policies, instructions and guidance. Unless otherwise instructed and/or approved, the employee agrees to perform official duties only at the agency-approved remote worksite. In addition to the terms and conditions outlined within the DD Form 2946 (Telework Agreement), the employee accepts the following terms and conditions in exchange for approval to work remotely:

a) Pay and benefits
The employee understands that upon entering into this agreement his/her official duty location will be changed to the address indicated in block 4 of this form and that his/her locality pay may change pursuant to 5 C.F.R § 531.605. Any change of the official worksite to the remote worksite location will be documented on a Notification of Personnel Action (Standard Form 50). (See "Duty Station" blocks 38 and 39 of SF-50 showing the city/town, county and state in which the official worksite is located.) The employee understands that a change in official duty location may change the amount of locality pay that s/he will receive for the duration of the remote work agreement. The employee understands that any change in official duty location may have implications for a Reduction in Force (RIF), as the new location may be a different competitive area than the original worksite. The employee further understands that any change in duty location is at the behest and for the personal benefit of the employee and is not a management-directed reassignment, transfer, or change in permanent duty station. As such, the employee is not entitled to: 1) travel/transportation expenses, administrative leave, permanent change of station (PCS) household goods moving cost, real estate expenses, or temporary living expenses for him/herself and any dependents to the approved remote worksite at the commencement of the remote work agreement; and 2) travel/transportation expenses, PCS household goods moving costs, real estate expenses, or temporary living expenses back to the Commands' primary worksite upon termination of the remote work agreement. For the duration of the remote work agreement, if a Distant Remote Worker is required by management to travel back to the local commuting area of the organizations' regular worksite for any official work-related purpose (other than upon termination of this agreement), the employee will be in placed in a temporary duty (TDY) status for the travel and will be entitled to TDY-related travel expenses pursuant to the Joint Travel Regulations. Local Remote Workers will not receive reimbursement for local travel expenses.

b) Liability
The DON is not liable for damages to an employee's personal or real property while the employee is working at the remote worksite, except to the extent the Government is held liable by the Federal Tort Claims Act or from claims arising under the Military Personnel and Civilian Employees Claims Act. The employee understands that the U.S. government will not be responsible for any operating costs that are associated with the employee using his or her home as an alternate worksite, for example, home maintenance, insurance, utilities, internet, cable, or phone. The employee agrees to provide high speed internet service and operational telephone to complete official work duties while at the remote worksite. The employee understands s/he may be covered by the Federal Employees' Compensation Act (FECA) for an on-the-job injury or occupational illness sustained while conducting official Government business at the approved alternative worksite. The employee agrees to inform his/her immediate supervisor of any on-the-job injury occupational illness sustained at the approved alternative worksite as soon as possible and provide his/her supervisor all relevant medical documentation related to the injury or illness and a completed CA-1 or CA-2 form. The employee also agrees to visit the Department of Labor's (DOL) Employees' Compensation Operations & Management Portal if s/he wish to file a workers' compensation claim with the Office of Workers' Compensation Programs (OWCP).

c) Termination of Remote Work
Management may terminate the remote work agreement at any time should the employee's performance or conduct not meet the prescribed standard; the remote working arrangement fails to meet organizational needs; or if the employee breaches the terms of this agreement. When possible, advance written notice should be provided. The employee may request termination of the remote work agreement at any time. Such request must be made by the employee in writing, include a detailed justification, and be directly submitted to the applicable management official consideration and decision. Distant remote employees waive any rights to all moving expenses if directed to return to the regular worksite (block 3) based on a decline in performance or for conduct.

d) Availability and Accessibility
The employee agrees to login and remain connected to the NMCI network, MS Teams, and other software applications as management deems applicable (VPN, etc.). The employee agrees to remain available and accessible via phone and email during established work hours and while in a duty status. The employee agrees to remain in regular and ongoing contact with his/her supervisor, team lead and team members, peers, and customers. The employee agrees to notify his/her supervisor (or designee) immediately in the event that any Information Technology (IT) equipment or software becomes inoperable during duty hours. Additionally, employee agrees to timely inform supervisor of any impact such as technological delay(s) and/or failure has on his/her ability to successfully perform the duties of his/her position. Consistent with the position and the needs of the command, the supervisor may approve and/or assign alternative work assignments to be accomplished which do not rely on the utilization of the affected IT equipment or software, and/or the employee will utilize appropriate leave.